

UPSC GS-II POLITY

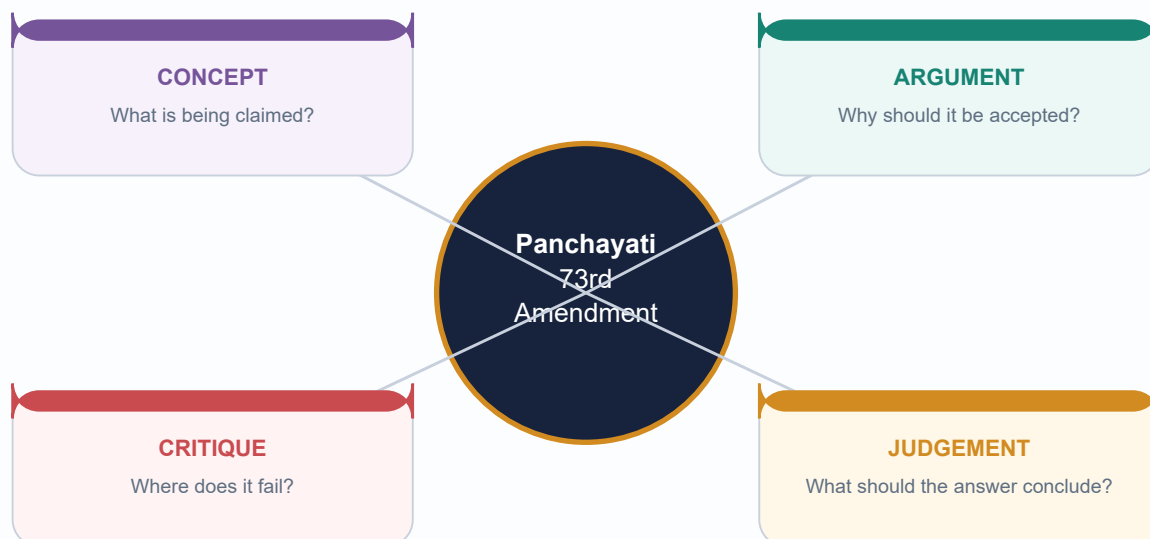
Panchayati Raj -- 73rd Amendment (Part IX)

Integrated Basic + Advanced Course

12 deep-learning modules | Balwant Rai Mehta Committee to PESA and Social Audit

Visual structures, election and finance mechanics, exemptions, UPSC traps and Mains frameworks

Prepared from the verified Polity knowledge base (Laxmikant, Ch. 38) and the completed guided session



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

From Democratic Decentralisation to Constitutional Status

GS-I / GS-II
Polity -- Local
Self-Government

NEWS TRIGGER

Renewed calls to deepen grassroots democracy and fiscal devolution to villages trace directly to the committees that first proposed elected local government below the state level.

INTRO & ORIGIN

The Balwant Rai Mehta Committee (1957) recommended 'democratic decentralisation', giving practical shape to the idea of a three-tier Panchayati Raj: Gram Panchayat, Panchayat Samiti and Zila Parishad. Rajasthan became the first state to launch Panchayati Raj, at Nagaur on 2 October 1959, followed soon after by Andhra Pradesh.

Later committees refined the model: Ashok Mehta (1977) proposed a two-tier system with formal participation of political parties; G.V.K. Rao (1985) examined administrative arrangements; and L.M. Singhvi (1986) recommended constitutional status for panchayats -- the idea that directly produced the 73rd Amendment.

TIMELINE

1957 — Balwant Rai Mehta Committee recommends democratic decentralisation.

1959 — Rajasthan launches Panchayati Raj at Nagaur (2 Oct); Andhra Pradesh follows.

1977 — Ashok Mehta Committee proposes a 2-tier system with political parties.

1985 — G.V.K. Rao Committee reviews administrative arrangements.

1986 — L.M. Singhvi Committee recommends constitutional status for PRIs.

1993 — 73rd Amendment (enacted 1992) comes into force on 24 April.

KEY DATA

Committee	Year	Key Recommendation
Balwant Rai Mehta	1957	Democratic decentralisation; 3-tier Panchayati Raj
Ashok Mehta	1977	2-tier system; formal role for political parties
G.V.K. Rao	1985	Review of administrative arrangements for PRIs
L.M. Singhvi	1986	Constitutional status for Panchayati Raj Institutions

HOW AN ADMINISTRATIVE IDEA BECAME A CONSTITUTIONAL MANDATE



STATIC THEORY

- Democratic decentralisation means transferring political and administrative power to elected local bodies, not merely field offices of the state government.
- Rajasthan's 1959 launch shows the model was tested administratively for over three decades before it received constitutional protection in 1992-93.
- Constitutional status (from 1993) was the qualitative change: panchayats no longer depend on the will of the state government for their existence, elections or tenure.
- The 73rd Amendment gives practical shape to Article 40 (DPSP), which directs the state to organise village panchayats as units of self-government.

MEMORY HOOK

MEHTA gave the idea (1957) -- SINGHVI gave it the Constitution (1986 -> 1992-93).

MUST-KNOW FACTS

1. The Balwant Rai Mehta Committee (1957) proposed the 3-tier Panchayati Raj model.
2. Rajasthan was the first state to launch Panchayati Raj, at Nagaur on 2 October 1959.
3. L.M. Singhvi's 1986 report first recommended constitutional status for panchayats.
4. The 73rd Amendment was enacted in 1992 but came into force only on 24 April 1993.

UPSC TRAPS

WRONG: The 73rd Amendment itself proposed the 3-tier structure and democratic decentralisation.

CORRECT: These ideas were first proposed administratively by the Balwant Rai Mehta Committee (1957), decades before the 1992 Amendment.

WRONG: L.M. Singhvi's committee designed the 3-tier system.

CORRECT: Singhvi (1986) recommended constitutional status; the 3-tier design traces to Balwant Rai Mehta (1957).

MAINS ANGLE

Trace the shift from Panchayati Raj as an administrative scheme (1957-1986) to a constitutional guarantee (1992-93), and evaluate whether constitutional status alone has secured genuine democratic decentralisation.

STUDY LINK

Polity -> Local Government -> 73rd Amendment, Part IX

HIGH

73rd Amendment Architecture -- Part IX & Eleventh Schedule

GS-II Polity --
Constitutional
Amendments

NEWS TRIGGER

Every discussion of rural local-body funds, functions and elections is anchored in the constitutional text inserted by the 73rd Amendment.

INTRO & ORIGIN

The 73rd Amendment Act, 1992 inserted Part IX ('The Panchayats', Articles 243 to 243-O) and added the Eleventh Schedule (29 functional items, Article 243-G) to the Constitution. It gave constitutional status to Panchayati Raj Institutions, giving practical shape to Article 40 of the Directive Principles.

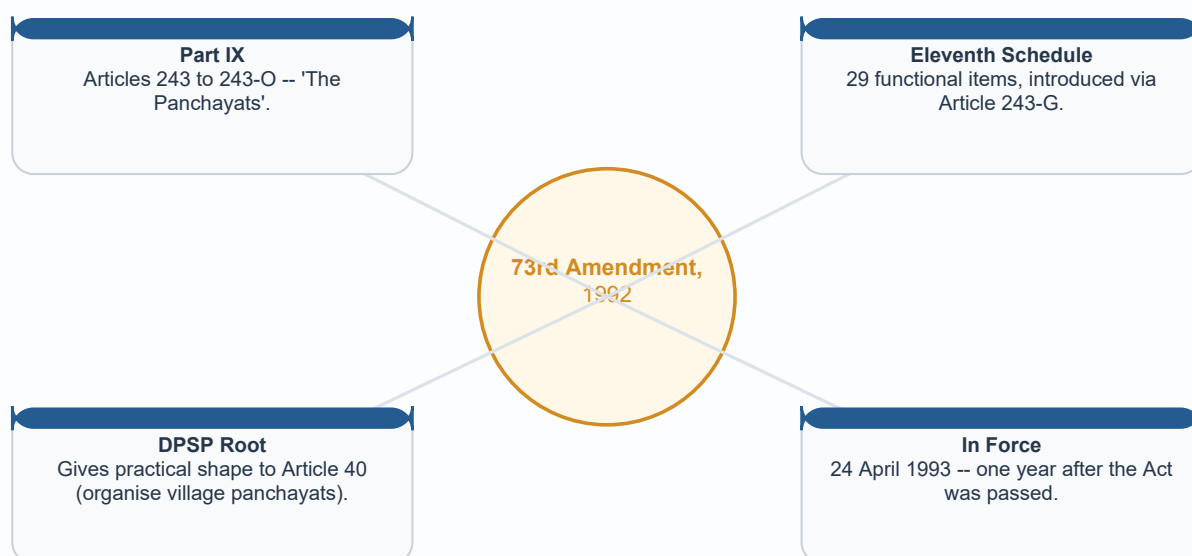
The Amendment came into force on 24 April 1993. Its provisions are divided into compulsory (mandatory for every state) and voluntary (left to state discretion) categories -- a distinction that is frequently tested.

TIMELINE

1992 — 73rd Amendment Act passed by Parliament.

1993 — Comes into force on 24 April; Part IX and Eleventh Schedule take effect.

ANATOMY OF THE 73RD AMENDMENT



KEY DATA

Item	Detail
Part / Articles	Part IX, Articles 243 to 243-O
Schedule	Eleventh Schedule -- 29 subjects (Article 243-G)
Enacted / in force	73rd Amendment 1992 -> in force 24 April 1993
DPSP root	Article 40 (organise village panchayats)

STATIC THEORY

- Part IX is the constitutional home of panchayats; it does not itself devolve subjects -- devolution of the Eleventh Schedule's 29 items is left to state legislatures as a voluntary provision.
- Article 243-G empowers state legislatures to endow panchayats with powers over the 29 items, subject to conditions the legislature may specify.
- The one-year gap between enactment (1992) and commencement (24 April 1993) is a recurring factual trap.

MEMORY HOOK

Part IX = structure; Eleventh Schedule = 29 subjects; Article 40 = the DPSP root.

MUST-KNOW FACTS

1. Part IX covers Articles 243 to 243-O and is titled 'The Panchayats'.
2. The Eleventh Schedule lists 29 functional items under Article 243-G.
3. The 73rd Amendment was passed in 1992 but came into force on 24 April 1993.
4. Article 40 (DPSP) is the constitutional root idea the Amendment operationalises.

UPSC TRAPS

- WRONG:** The 73rd Amendment came into force in 1992, the year it was passed.
- CORRECT:** It was passed in 1992 but came into force only on 24 April 1993.
- WRONG:** The Eleventh Schedule has 29 items for municipalities.
- CORRECT:** 29 items belong to panchayats (Eleventh Schedule); municipalities have 18 (Twelfth Schedule).

MAINS ANGLE

Examine how Part IX and the Eleventh Schedule together operationalise Article 40, and why devolution of the 29 subjects remains a voluntary, state-dependent exercise.

STUDY LINK

Polity -> Part IX -> Article 243-G -> Eleventh Schedule

HIGH

Three-Tier Structure & the Gram Sabha

GS-II Polity --
Institutional
Structure

NEWS TRIGGER

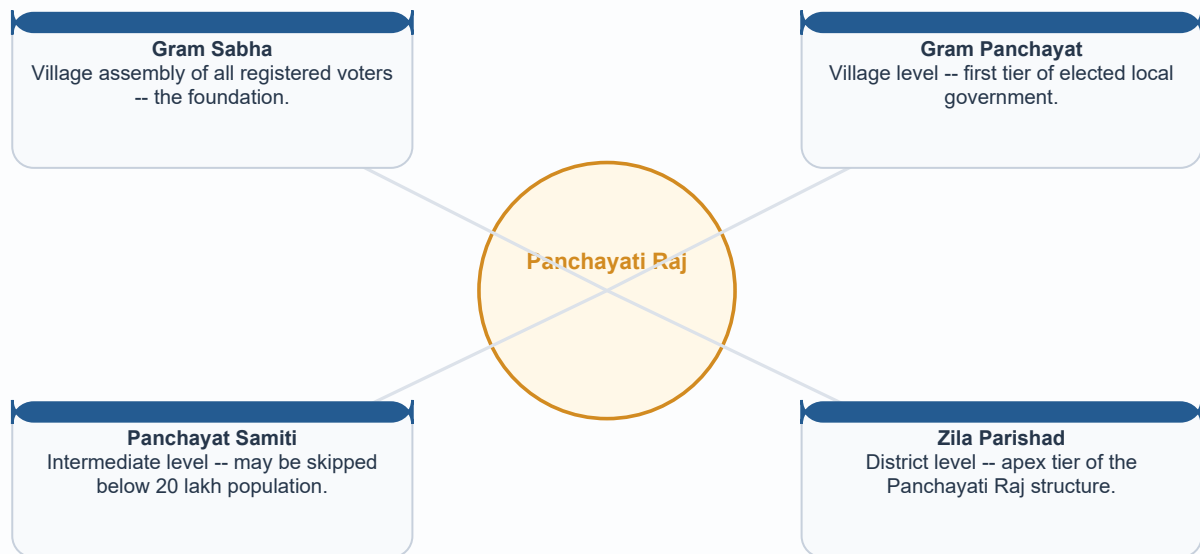
The Gram Sabha's role as the participatory foundation of rural governance is repeatedly invoked in debates on MGNREGA social audits and local transparency.

INTRO & ORIGIN

Panchayati Raj operates as a three-tier system -- village (Gram Panchayat), intermediate (Panchayat Samiti) and district (Zila Parishad) -- with the Gram Sabha, the village assembly of all registered voters, as the participatory foundation of the entire structure.

A state with a population below 20 lakh may skip the intermediate tier altogether, since the Constitution allows this flexibility for smaller states.

THE THREE-TIER PANCHAYATI RAJ STRUCTURE



KEY DATA

Tier	Level	Note
Gram Sabha	Village assembly	All registered voters; not an elected tier but the base
Gram Panchayat	Village	First elected tier
Panchayat Samiti	Intermediate	Optional for states under 20 lakh population
Zila Parishad	District	Apex elected tier

STATIC THEORY

- The Gram Sabha is not itself an elected tier; it is the deliberative body of the whole village electorate and underlies the legitimacy of the elected panchayats.
- The intermediate tier is the only tier the Constitution allows a state to omit, and only where population is below 20 lakh.
- This flexibility recognises that a rigid three-tier structure may not suit every state's demographic size.

MEMORY HOOK

Gram Sabha = the base of the pyramid; Gram Panchayat -> Panchayat Samiti -> Zila Parishad = the three tiers above it.

MUST-KNOW FACTS

1. The Gram Sabha is the village assembly of all registered voters.
2. The three tiers are village, intermediate and district.
3. A state with population under 20 lakh may skip the intermediate tier.
4. The Gram Sabha is the participatory foundation on which the elected tiers rest.

UPSC TRAPS

- WRONG:** All three tiers are compulsory for every state.
- CORRECT:** A state with population under 20 lakh may skip the intermediate tier.
- WRONG:** The Gram Sabha is an elected body like the Gram Panchayat.
- CORRECT:** The Gram Sabha is the assembly of all registered voters, not a separately elected tier.

MAINS ANGLE

Assess whether the Gram Sabha functions as genuine participatory democracy or as a formal requirement with limited real deliberation in most states.

STUDY LINK

Polity -> Part IX -> Three-Tier Structure -> Gram Sabha

HIGH**Elections -- Direct Seats, Chairpersons and Age**

GS-II Polity --
Elections &
Representation

NEWS TRIGGER

Disputes over indirect election of panchayat chairpersons and the minimum candidate age periodically surface in state election litigation.

INTRO & ORIGIN

All territorial seats at all three levels of Panchayati Raj are directly elected. Chairpersons at the intermediate and district levels are elected indirectly by and from among the elected members; the method of electing the village-level chairperson is left to state law.

Article 243-C additionally permits state legislatures to provide for the representation of members of the Lok Sabha, state legislative assembly and other specified persons in panchayats, without disturbing the directly elected territorial seats.

KEY DATA

Aspect	Panchayati Raj Provision
Territorial seats (all 3 levels)	Directly elected
Chairperson -- intermediate and district	Indirectly elected by and from elected members
Chairperson -- village level	Method left to state law
Additional representation	Article 243-C allows MPs/MLAs and specified persons
Minimum candidate age	21 years (not 25, as for state legislatures)

STATIC THEORY

- Direct election of territorial seats is uniform and mandatory across the village, intermediate and district levels -- this is the compulsory democratic core of Part IX.
- Indirect election of chairpersons at the two upper tiers is a deliberate design choice distinguishing Panchayati Raj from direct election of the state's own executive head.
- The lower candidate age of 21 (versus 25 for state legislatures) recognises panchayats as a distinct, more accessible tier of representation.

MEMORY HOOK

Seats = always direct; chairpersons above the village level = indirect; age = 21, not 25.

MUST-KNOW FACTS

1. All territorial seats at all three panchayat levels are directly elected.
2. Chairpersons of the intermediate and district panchayats are elected indirectly.
3. The village-level chairperson's mode of election is left to state law.
4. The minimum candidate age for panchayat elections is 21 years.

UPSC TRAPS

WRONG: Only village-level territorial seats are directly elected.

CORRECT: Territorial seats at all three levels are directly elected.

WRONG: The minimum candidate age for panchayats is 25, as for state legislatures.

CORRECT: The minimum candidate age for panchayats is 21.

MAINS ANGLE

Examine whether indirect election of chairpersons above the village level dilutes or strengthens democratic accountability in the Panchayati Raj system.

STUDY LINK

Polity -> Part IX -> Elections -> Article 243-C

HIGH**Reservation -- SC/ST and Women**

GS-II Polity --
Representation &
Social Justice

NEWS TRIGGER

Roughly 21 states have raised women's reservation in Panchayati Raj Institutions to 50 percent, well above the constitutional floor -- a live theme in debates on grassroots women's empowerment.

INTRO & ORIGIN

The Constitution mandates reservation of seats for Scheduled Castes and Scheduled Tribes in proportion to their population, and reservation of not less than one-third of seats for women (including SC/ST women) at all three levels, including chairperson offices.

'Not less than one-third' sets only a constitutional floor -- states are free to enhance it, and many now provide 50 percent reservation for women.

WOMEN'S RESERVATION -- CONSTITUTIONAL FLOOR VS ENHANCED STATE PROVISION

Constitutional minimum



33

Enhanced by ~21 states



50

Figures reflect the statutory 'not less than one-third' floor and the enhanced 50% provision adopted by many states, as recorded in the verified knowledge base.

KEY DATA

Category	Reservation Rule
SC/ST	In proportion to their population in each panchayat area
Women (incl. SC/ST women)	Not less than 1/3 of seats and chairperson offices
Enhanced state provision	~21 states have raised women's reservation to 50%

STATIC THEORY

- Reservation applies both to ordinary seats and to chairperson offices at each level, not merely to general membership.
- 'Not less than one-third' is a floor, not a ceiling -- this distinction is frequently tested and frequently misremembered as a fixed one-third.
- The debate on 50% women's reservation links to the broader Nari Shakti Vandan Adhiniyam discussion on women's representation in legislatures.

MEMORY HOOK

SC/ST = population-proportional; women = 'not less than 1/3', many states now at 50%.

MUST-KNOW FACTS

1. SC/ST reservation in panchayats is proportional to their population.
2. Women's reservation is constitutionally 'not less than one-third' of seats and chairperson offices.
3. Around 21 states have enhanced women's reservation in PRIs to 50 percent.
4. Reservation applies to chairperson offices as well as ordinary seats.

UPSC TRAPS

WRONG: Women's reservation in panchayats is fixed at exactly one-third everywhere.

CORRECT: The Constitution sets a floor of 'not less than one-third'; many states have raised it to 50%.

MAINS ANGLE

Women's reservation in Panchayati Raj Institutions -- has it produced genuine grassroots empowerment, or does 'sarpanch-pati' proxy rule undermine its intent? Examine.

STUDY LINK

Polity -> Part IX -> Reservation -> Women's Empowerment Debate

HIGH**Finances -- State Finance Commission and the 3 Fs****GS-II / GS-III**Polity -- Local
Finance**NEWS TRIGGER**

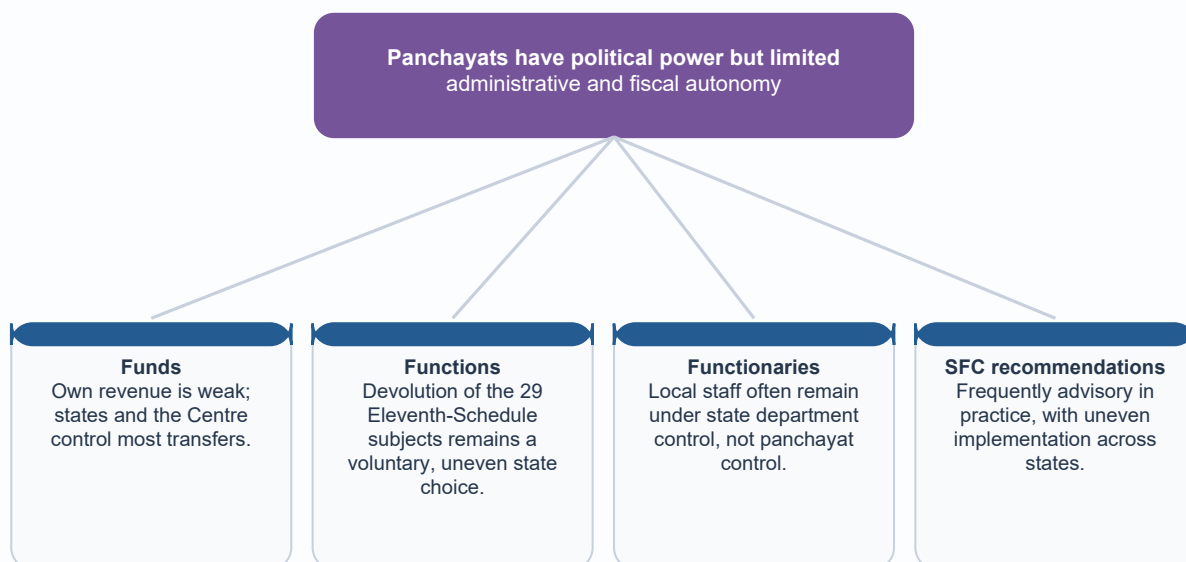
16th Finance Commission grants to local bodies keep alive the long-standing demand for greater fiscal devolution -- the 'funds, functions, functionaries' (3 Fs) debate.

INTRO & ORIGIN

The Governor constitutes a State Finance Commission (SFC) every five years to review the financial position of panchayats and recommend the distribution of resources between the state and its local bodies.

Despite this constitutional mechanism, Panchayati Raj is widely assessed to have achieved political decentralisation without matching administrative and fiscal decentralisation -- the persistent '3 Fs' gap.

WHY 'POLITICAL' DECENTRALISATION HAS NOT BECOME 'FULL' DECENTRALISATION



KEY DATA

Mechanism	Role
State Finance Commission (SFC)	Constituted by Governor every 5 years; reviews panchayat and municipal finances
Finance Commission of India	Recommends Union grants to states, including for local bodies (e.g. 16th FC)

STATIC THEORY

- Political decentralisation (elections, reservation, tenure) has been achieved reasonably well since 1993.
- Administrative and fiscal decentralisation -- the transfer of functionaries and adequate own-revenue -- remains incomplete, producing the '3 Fs' critique.
- The State Finance Commission is distinct from the Union Finance Commission, though both feed into resources eventually reaching panchayats.

MEMORY HOOK

3 Fs = Funds, Functions, Functionaries -- Panchayati Raj's unfinished agenda.

MUST-KNOW FACTS

1. The Governor constitutes a State Finance Commission every five years.
2. The SFC reviews the financial position of panchayats and recommends resource distribution.
3. The '3 Fs' -- funds, functions, functionaries -- summarise the incomplete devolution debate.
4. 16th Finance Commission grants to local bodies are a live current-affairs anchor for this debate.

UPSC TRAPS

WRONG: The State Finance Commission is the same body as the Union Finance Commission.

CORRECT: The SFC is a separate, state-level body constituted by the Governor every 5 years.

MAINS ANGLE

'Panchayati Raj has achieved political decentralisation but not administrative and fiscal decentralisation.' Examine with reference to the 3 Fs -- funds, functions, functionaries.

STUDY LINK

Polity -> Part IX -> State Finance Commission
-> 3 Fs Debate

HIGH

PESA Act, 1996 -- Extending Self-Governance to Tribal Areas

GS-II / GS-III
Polity -- Tribal
Self-Governance

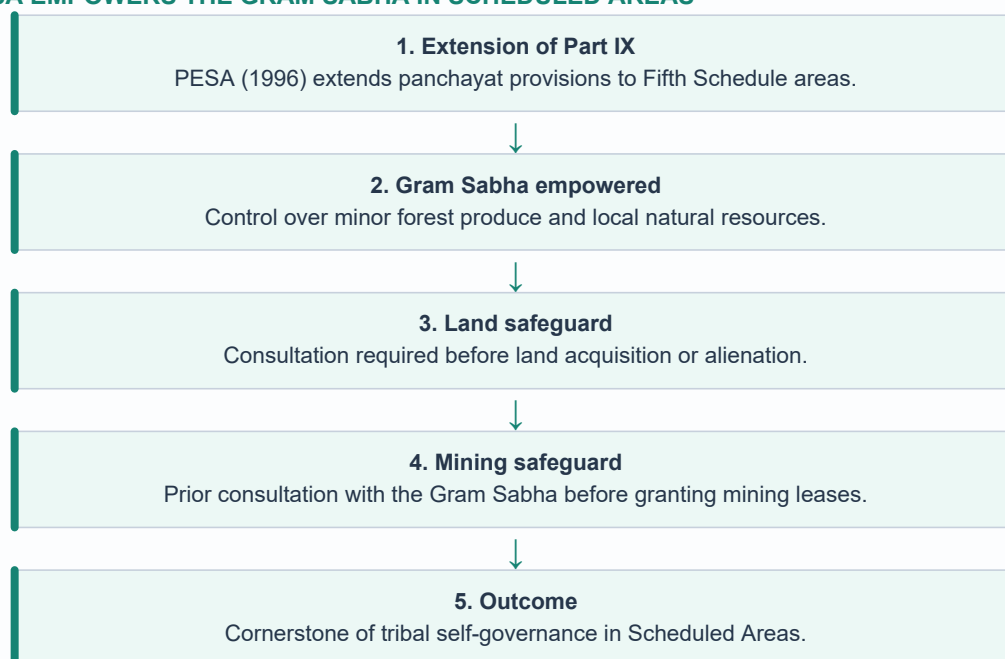
NEWS TRIGGER

Gaps in PESA implementation and Gram Sabha rights over forest and land resources remain a recurring current-affairs theme, often linked to the Forest Rights Act.

INTRO & ORIGIN

The Provisions of the Panchayats (Extension to the Scheduled Areas) Act, 1996 extends Part IX to Fifth Schedule areas, empowering the Gram Sabha with control over local resources, minor forest produce, land alienation, and mandatory consultation before land acquisition or mining.

HOW PESA EMPOWERS THE GRAM SABHA IN SCHEDULED AREAS



STATIC THEORY

- PESA fills part of the Fifth Schedule gap left by Part IX's exemptions, but only for Scheduled Areas -- it does not apply to Sixth Schedule areas.
- The Gram Sabha under PESA has a substantive role over resources, distinguishing it from the more procedural Gram Sabha role under ordinary Part IX panchayats.
- PESA implementation gaps link directly to Forest Rights Act (FRA) linkage debates on tribal land and forest rights.

MEMORY HOOK

PESA = Part IX + Fifth Schedule + empowered Gram Sabha over forest, land and mining consultation.

MUST-KNOW FACTS

1. PESA, 1996 extends Part IX to Fifth Schedule (tribal) areas.
2. It empowers the Gram Sabha over minor forest produce and local resources.
3. Consultation with the Gram Sabha is required before land acquisition or granting mining leases.
4. PESA does not extend to Sixth Schedule areas.

UPSC TRAPS

WRONG: PESA extends Part IX to Sixth Schedule areas.

CORRECT: PESA extends Part IX to Fifth Schedule areas.

MAINS ANGLE

PESA and tribal self-governance -- assess the gap between the promise of Gram Sabha empowerment over forest, land and mining, and the ground reality of implementation.

STUDY LINK

Polity -> Part IX -> PESA Act 1996 -> Fifth Schedule

HIGH**CA & Mains Synthesis -- The Devolution Debate**

GS-II Polity --
Current Affairs
Integration

NEWS TRIGGER

Women's reservation reaching 50% in many states, 15th/16th Finance Commission grants to local bodies, and persistent PESA implementation gaps together define the current Panchayati Raj devolution debate.

INTRO & ORIGIN

Three decades after the 73rd Amendment, Panchayati Raj presents a mixed picture: strong political decentralisation through regular elections and reservation, alongside an unfinished agenda of administrative and fiscal devolution.

THE STATE OF PANCHAYATI RAJ -- 2026 SNAPSHOT**PRI Devolution Debate**

Political Decentralisation Regular elections, reservation and the 5-year term are broadly achieved.	Fiscal & Administrative Gap The 3 Fs (funds, functions, functionaries) remain incomplete across most states.
Women's Reservation ~21 states at 50%, but 'sarpanch-pati' proxy rule is a genuine concern.	PESA & Tribal Rights Gram Sabha powers over forest, land and mining face implementation gaps.

STATIC THEORY

- 16th Finance Commission grants to local bodies keep the fiscal-devolution debate active in current policy discussions.
- Enhanced women's reservation is a genuine structural gain, but its real impact depends on whether elected women exercise independent authority.
- PESA's promise of tribal self-governance depends on consistent implementation of Gram Sabha consultation requirements, which varies by state.

MEMORY HOOK

Political power = achieved; Fiscal + administrative power = still the unfinished agenda of Panchayati Raj.

MUST-KNOW FACTS

1. 16th Finance Commission grants to local bodies are a live fiscal-devolution anchor.
2. Around 21 states have enhanced women's reservation in PRIs to 50%.
3. PESA implementation gaps continue to affect tribal Gram Sabha rights over land, forest and mining.

UPSC TRAPS

WRONG: Full constitutional status in 1993 automatically guaranteed fiscal and administrative decentralisation.

CORRECT: Constitutional status secured political decentralisation; fiscal and administrative decentralisation (the 3 Fs) remain incomplete.

MAINS ANGLE

'Panchayati Raj has achieved political decentralisation but not administrative and fiscal decentralisation.' Examine (the 3 Fs). Also consider: has women's reservation led to genuine empowerment or 'sarpanch-pati' proxy rule? And: PESA and tribal self-governance -- promise versus ground reality.

STUDY LINK

Polity -> Part IX -> Devolution Debate -> 16th Finance Commission

MEDIUM UPSC RELEVANCE**MEDIUM****Duration, Dissolution and Disqualification**

GS-II Polity --
Institutional
Continuity

NEWS TRIGGER

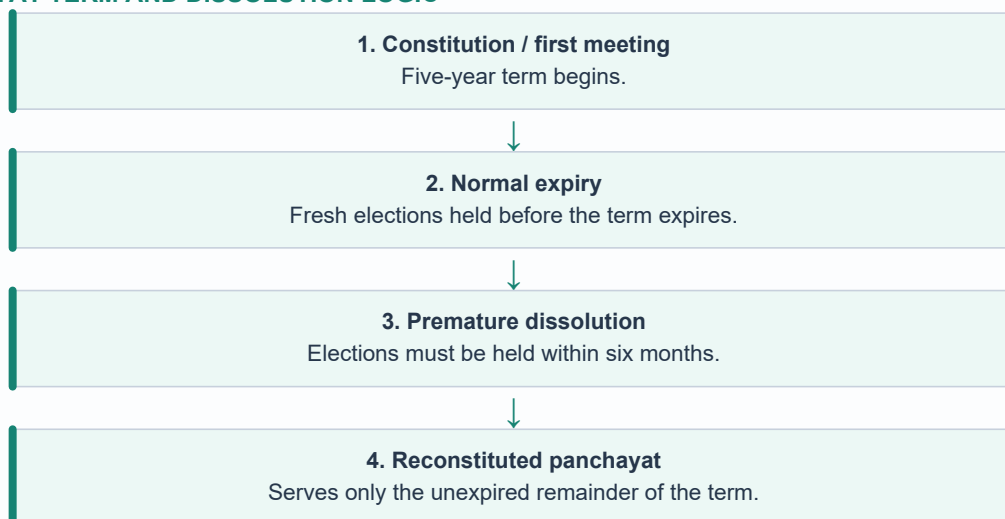
Delayed panchayat elections after dissolution routinely attract State Election Commission and High Court scrutiny over the constitutional six-month deadline.

INTRO & ORIGIN

Every panchayat has a fixed five-year term from the date of its first meeting. If dissolved earlier, fresh elections must be held within six months of dissolution, and the reconstituted panchayat serves only for the remainder of the original five-year term.

KEY DATA

Item	Rule
Term	5 years from the date of first meeting
Election on dissolution	Within 6 months of dissolution
Reconstituted panchayat's term	Only the remainder of the original 5-year term
Minimum candidate age	21 years

PANCHAYAT TERM AND DISSOLUTION LOGIC**STATIC THEORY**

- The five-year term protects panchayats from arbitrary dismissal by state governments, mirroring the logic used for state legislatures.
- The six-month re-election deadline is an enforceable constitutional safeguard, not a discretionary target.
- A reconstituted panchayat does not get a fresh five-year term -- it only completes the original term's remainder.

MEMORY HOOK

5 years -> if dissolved, 6 months to re-elect -> new panchayat only finishes the old term.

MUST-KNOW FACTS

1. Every panchayat has a five-year term from its first meeting.
2. Fresh elections after dissolution must occur within six months.
3. A reconstituted panchayat serves only the remainder of the original term.
4. The minimum candidate age for panchayat elections is 21 years.

UPSC TRAPS

WRONG: A reconstituted panchayat gets a fresh five-year term.
CORRECT: It serves only for the remainder of the original five-year term.

MAINS ANGLE

Discuss the constitutional safeguards -- fixed term and the six-month re-election deadline -- that protect panchayats from executive interference.

STUDY LINK

Polity -> Part IX -> Duration and Dissolution

MEDIUM**Compulsory vs Voluntary Provisions**

GS-II Polity --
Constitutional
Design

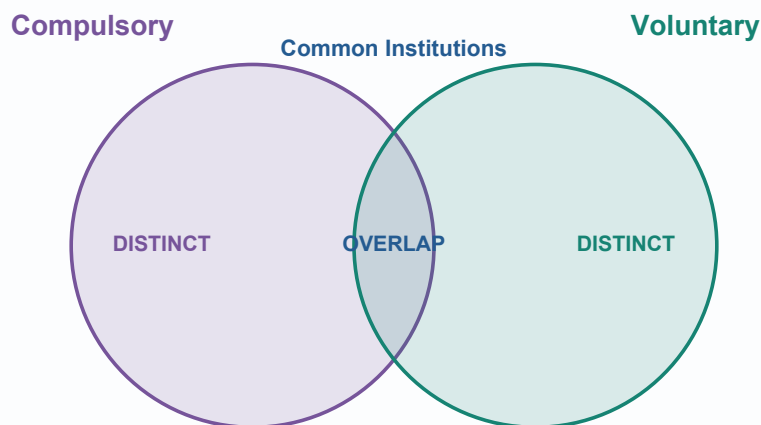
NEWS TRIGGER

The compulsory-voluntary split explains why panchayats look similar in structure across states but differ sharply in the powers they actually exercise.

INTRO & ORIGIN

The 73rd Amendment's provisions fall into two categories: compulsory provisions, which every state must implement, and voluntary provisions, which are left to each state's discretion.

COMPULSORY VS VOLUNTARY PROVISIONS OF THE 73RD AMENDMENT



Compulsory

- Gram Sabha
- 3-tier structure (with the under-20-lakh exception)
- Direct election of territorial seats
- SC/ST and women's reservation
- 5-year duration; age-21 disqualification rule

Common Institutions

- State Election Commission
- State Finance Commission

Voluntary

- Endowing panchayats as institutions of self-government
- Devolving the 29 Eleventh-Schedule subjects
- Reservation for backward classes
- Devolution of financial powers

Structure and elections are mandatory nationwide; real functional and financial devolution is left to state discretion.

STATIC THEORY

- This compulsory-voluntary distinction is the constitutional reason why panchayat elections happen everywhere, but panchayat powers vary widely by state.
- Reservation for backward classes is voluntary, unlike the compulsory SC/ST and women's reservation.
- Devolution of the 29 Eleventh-Schedule subjects being 'voluntary' is the constitutional root of the '3 Fs' implementation gap discussed elsewhere in this course.

MEMORY HOOK

Compulsory = structure and elections; Voluntary = real functions and finances.

MUST-KNOW FACTS

1. Compulsory provisions include the Gram Sabha, 3-tier structure, direct election, and SC/ST plus women's reservation.
2. Voluntary provisions include devolution of the 29 Eleventh-Schedule subjects and backward-class reservation.
3. The State Election Commission and State Finance Commission are common institutional mechanisms across both categories.

UPSC TRAPS

WRONG: Devolution of the 29 Eleventh-Schedule subjects is constitutionally compulsory for every state.

CORRECT: It is a voluntary provision -- states may choose whether and how much to devolve.

MAINS ANGLE

Analyse how the compulsory-voluntary distinction in the 73rd Amendment has produced uniform electoral structures but uneven functional devolution across states.

STUDY LINK

Polity -> Part IX -> Compulsory and Voluntary Provisions

MEDIUM

Where Part IX Does Not Apply -- Exemptions

GS-II Polity --
Special Areas

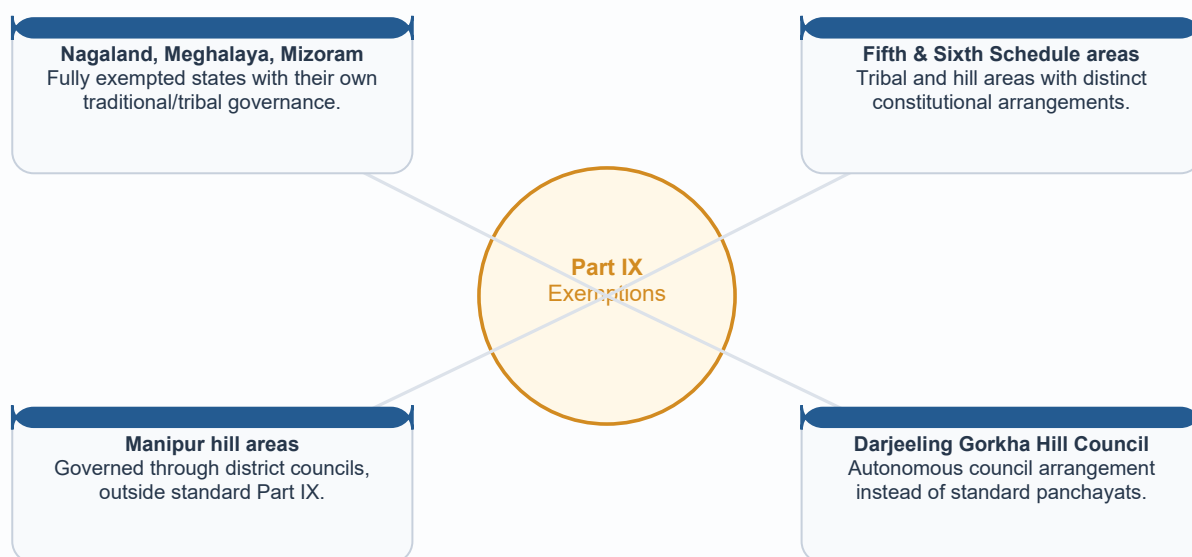
NEWS TRIGGER

Tribal and hill-area self-governance debates often begin from the fact that the standard Panchayati Raj framework was never extended to these regions in its original form.

INTRO & ORIGIN

Part IX does not apply uniformly across the country. It excludes Nagaland, Meghalaya and Mizoram, the Fifth and Sixth Schedule areas, the hill areas of Manipur that have district councils, and the Darjeeling Gorkha Hill Council area.

AREAS EXEMPTED FROM PART IX



STATIC THEORY

- These exemptions recognise that tribal and hill communities in these regions already possess, or are guaranteed, distinct self-governing institutions.
- The Fifth Schedule exemption is precisely the gap that the PESA Act, 1996 was designed to partially bridge for tribal areas outside the excluded states.

MEMORY HOOK

Exempted: Nagaland-Meghalaya-Mizoram + Fifth/Sixth Schedule + Manipur hills + Darjeeling GHC.

MUST-KNOW FACTS

1. Part IX does not apply to Nagaland, Meghalaya and Mizoram.
2. It also excludes Fifth and Sixth Schedule areas.
3. Hill areas of Manipur with district councils, and the Darjeeling Gorkha Hill Council, are similarly excluded.

UPSC TRAPS

WRONG: Part IX applies uniformly to every state and area of India.

CORRECT: It excludes Nagaland, Meghalaya, Mizoram, Fifth/Sixth Schedule areas, Manipur hill areas, and Darjeeling GHC.

MAINS ANGLE

Examine why the standard Panchayati Raj framework was excluded from tribal and hill areas, and how PESA attempts to address the resulting gap for Fifth Schedule areas.

STUDY LINK

Polity -> Part IX -> Exemptions -> PESA Act 1996

MEDIUM**Social Audit -- Participatory Accountability**

GS-II Polity --
Local
Accountability

NEWS TRIGGER

Section 17 of MGNREGA mandates Gram Sabha monitoring and regular social audits of works within the Gram Panchayat -- Meghalaya's 2017 Social Audit Act is widely cited as the first dedicated state law on the subject.

INTRO & ORIGIN

Social audit means community verification of records, expenditure and outcomes -- a form of participatory accountability distinct from departmental inspection, with the Gram Sabha as its natural forum.

Laxmikant frames the Gram Sabha as the participatory-democracy core of Panchayati Raj; MGNREGA's Section 17 and Meghalaya's 2017 Act operationalise this idea for public works and welfare programmes.

KEY DATA

Feature	Social Audit Significance
Forum	Gram Sabha / community platform
Evidence	Muster rolls, bills, vouchers, measurement books, beneficiary records
Outcome	Transparency, recovery or correction, accountability of implementing agencies

STATIC THEORY

- Social audit is community verification by beneficiaries and citizens -- it is not the same as the CAG's audit of accounts, which is institutional and expenditure-focused.
- MGNREGA Section 17 makes social audit a legal mandate, not a voluntary good practice.
- Meghalaya's 2017 law is notable as the first state-level statute dedicated specifically to social audit and public-services accountability.

MEMORY HOOK

**Social audit = community checks the books; CAG audit = the Constitution's auditor checks the accounts.
Different actors, different mandates.**

MUST-KNOW FACTS

1. Section 17 of MGNREGA mandates Gram Sabha monitoring and social audits of Gram Panchayat works.
2. Meghalaya enacted the Meghalaya Community Participation and Public Services Social Audit Act, 2017.
3. Social audit evidence includes muster rolls, bills, vouchers, measurement books and beneficiary records.

UPSC TRAPS

WRONG: Social audit under MGNREGA is the same as a CAG audit of accounts.

CORRECT: Social audit is participatory community verification by beneficiaries; the CAG audit is a separate institutional exercise.

MAINS ANGLE

Discuss the role of the Gram Sabha in social audit under MGNREGA, and evaluate whether such participatory accountability mechanisms have strengthened local governance.

STUDY LINK

Polity -> Part IX -> Gram Sabha -> Social Audit (MGNREGA Sec 17)

End of Register Notes — UPSC Agent / Copilot CLI